

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CLUD066452: SE & MNS PROPERTY GROUP LLC vs DONALD L. RAHN, et al.
09/02/2026 in Department 42
Motion to Set Aside/Vacate Judgment**

Motion: Defendant Nancy Rahn's Motion to set aside/vacate judgment

Tentative Ruling:

Defendant is an 85-year-old woman with mental capacity issues. She lives in a home that was purchased by her and her husband (now deceased). She was hospitalized in late April and early May 2026. She was served with an unlawful detainer complaint in mid-June 2026. Service was effected by posting on the property with a copy also mailed. Defendant states she did not see anything posted and did not regularly open her mail. She did not respond to the complaint. When a neighbor came to check on her, he found the complaint in the yard and helped her go through her mail. She now understands there is a lawsuit but does not appear to appreciate why she is being sued or understand that she could be losing her home. She is reported to be very frail physically, unsteady on her feet and easily confused.

A default judgment was entered on July 14, 2026. The sheriff lockout was scheduled for August 3, 2026, but was halted due to the filing of this ex parte motion.

Defendant now seeks relief from the default. A guardian ad litem has petitioned to represent her interests. Defendant asserts she was defrauded out of title to her property and was not aware of the lawsuit. She challenges Plaintiff's right to evict her.

The motion is opposed. Plaintiff argues service was proper and argues that Defendant cannot challenge Plaintiff's title to the property in the context of an unlawful detainer.

The Court finds good cause to set aside the default. The Court is persuaded that circumstances rendered Defendant unable to respond to the complaint on her own and grants relief under CCP section 473(b). Defendant has a satisfactory excuse for failing to respond, she has a colorable defense and she was diligent in seeking to set aside the default. While Plaintiff challenges whether the Defendant can assert her defense re: title in unlawful detainer proceedings, the Court is not persuaded that these arguments would be precluded. The motion is granted. Defendant shall file and serve her answer forthwith, and in no even later than 5 days from this order.

Defendant to give notice.